

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present

Justice Jamal Khan Mandokhail
Justice Irfan Saadat Khan

Criminal Petitions No. 852, 855 & 859 of 2026

(Against the order dated 24.03.2026 passed by the Lahore High Court,
Lahore in CrI. Misc. No. 16023-B/2026)

Bait Ullah (in CrI. P. 852/2026)	Petitioner(s)
Shah Hussain (in CrI. P. 855/2026)	
Faisal ur Rehman (in CrI. P. 859/2026)	

Versus

The State thr. PG Punjab	Respondent(s)
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For the Petitioner(s):	Mr. Noor Alam Khan, ASC (in all cases)
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For the State:	Mr. Irfan Zia, Addl. PG Punjab a/w Muhammad Aslam, SI/IO
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Date of Hearing:	08.06.2026
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JUDGMENT

Irfan Saadat Khan, J. Through this consolidated order, we intend to dispose of the instant petitions for post-arrest bail filed by petitioners Bait Ullah (CrI. P. No. 852/2026), Shah Hussain (CrI. P. No. 855/2026), and Faisal ur Rehman (CrI. P. No. 859/2026), which arise out of FIR No. 860/2025, registered on 23.09.2025 at Police Station Malakwal, District Mandi Bahauddin. The case involves allegations under Sections 9(1)-6(c) of the Control of Narcotic Substances Act, 1997 ("CNSA") read with Section 13-2(a) of the Punjab Arms Amendment Ordinance, 2015.

2. According to the prosecution story, on 23.09.2025, the petitioners were allegedly apprehended at the spot by a police party. Upon conducting personal searches, distinct recoveries were purportedly effected from each of them. From petitioner Shah Hussain, 1,100 grams of Methamphetamine (ICE), a mobile phone, a purse containing identity and ATM cards, and alleged sale proceeds of Rs. 3,000/- were recovered. From petitioner Bait Ullah, 1,100 grams of Methamphetamine (ICE), three mobile phones, a purse with

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cards, and sale proceeds amounting to Rs. 5,190/- were allegedly recovered. Similarly, from petitioner Faisal-ur-Rehman, 1,100 grams of Methamphetamine (ICE), two mobile phones, an identity card, a 30-bore pistol, and sale proceeds of Rs. 1,000/- were recovered.

3. The petitioners approached the Lahore High Court, Lahore seeking post-arrest bail, which was turned down by a learned Divisional Bench of the said Court vide a consolidated order dated 24.03.2026 passed in CrI. Misc No. 16023-B/2026, leading to the filing of the instant petitions before this Court.

4. Mr. Noor Alam Khan, learned ASC appearing on behalf of the petitioners, contends that the petitioners are innocent and have been falsely implicated in the instant case with *mala fide* intentions. He strongly underscores that the entire recovery process was orchestrated by the local police in flagrant violation of the mandatory provisions of the law, noting that despite the recovery allegedly taking place in a public area, no independent, private witness from the locality was associated with the proceedings. He further submits that the question of joint or separate recovery from individual travel contexts require deeper evaluation and that the entire matter falls within the domain of 'further inquiry' under Section 497(2) of the Cr.P.C., thereby entitling the petitioners to the concession of bail. Learned counsel further submitted that, in fact, the petitioners were arrested on 17.09.2025 by police officials of Police Station Khutiala Sheikha, M.B. Din. He contended that, in order to foist a false case upon them, their arrest was shown as 23.09.2025, and thereafter, the recovery of a certain quantity of ICE was falsely attributed to them. He stated that this aspect requires a further probe with regard to the actual date of arrest; hence, the case falls within the ambit of further inquiry, and the petitioners are entitled to the concession of bail.

5. Conversely, the learned Additional Advocate General, assisted by the Investigating Officer, vehemently opposed the grant of bail. He argued that the offense involves a substantial quantity of a highly lethal psychotropic substance, Methamphetamine (ICE), which falls squarely within the prohibitory clause of Section 497(1) of the Cr.P.C. He highlighted that a positive chemical examiner's report from the Punjab Forensic Science Agency (PFSA) is available on the file, which *prima facie* connects the petitioners with the commission of the offense, and thus, they do not deserve any leniency at this stage. He further stated that the assertion of their arrest on 17.09.2025 is incorrect. According to the learned counsel, they were, in fact, arrested in the above-mentioned FIR on 23.09.2025, and a substantial quantity of ICE was recovered from their possession; hence, they are not entitled for the concession of bail.

6. We have heard the learned counsel for the parties at length and perused the record with their assistance.

7. While the quantity recovered falls within the statutory boundaries that invite stringent penalties, it is a well-settled legal principle that the heinousness of an offense alone cannot serve as a solitary ground to withhold the concession of bail if the overall evidentiary profile of the prosecution points toward the necessity of a further probe.

8. In the current context, the prosecution's case suffers from several foundational and evidentiary vulnerabilities that bring the matter within the statutory definition of "further inquiry." Firstly, the question of individual travel contexts, joint presence, and the attribution of separate recoveries requires deeper judicial evaluation at trial. As held by this Court in *Gul Manan*,¹ the mere presence of an

¹ *Gul Manan v. The State* (2021 SCMR 1804).

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individual at the scene or inside a shared environment where contraband is recovered does not automatically translate to "conscious knowledge" or constructive possession. The determination of whether each individual petitioner possessed exclusive, conscious knowledge of the distinct packets of Methamphetamine (ICE) is a matter requiring serious consideration, which can only be safely determined by the learned Trial Court after recording and evaluating evidence.

9. Secondly, the entire recovery process is structurally compromised by the complete absence of independent public witnesses, despite the raid taking place in an accessible public venue. This legal lacuna is further compounded by the admitted absence of modern, transparent investigation techniques, such as videography or photography at the spot, to establish the veracity of the raid and the precise role played by each accused. This Court in *Abdul Mateen*,² has observed that where the recovery of psychotropic substances is effected without such contemporaneous visual documentation to support the prosecution's narrative, the true role of the accused is obscured, thereby turning the case into an exploratory assessment. As far as the assertion of the learned counsel for the petitioners is concerned, that the accused were in fact arrested on 17.09.2025 by the police officials of Police Station Khutiala Sheikh, M.B. Din, and that during their illegal detention, the present case of recovery of ICE was foisted upon them, the record reveals that on 22.09.2025, the petitioners' relative, Attam Khan, filed a petition under Section 491 Cr.P.C. for their recovery. Following the Court's order, the bailiff visited the police station on 22.09.2025; however, the petitioners were not found at the said police station. Surprisingly, on the very next day, i.e., 23.09.2025, the accused were arrested by the police

² *Abdul Mateen Mehboob v. The State* (2026 SCMR 135)

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officials of Police Station Mandi Bahauddin on the ground of having a certain quantity of ICE in their possession. In our view, this matter appears to be one of further inquiry in order to verify the aspect of their alleged arrest on 17.09.2025 by the police officials of Police Station Khutiala Sheikh, M.B. Din, and the subsequent filing of the Section 491 Cr.PC application on 22.09.2025 by a relative of the petitioners. This assessment, in our view, can only be conclusively made by the trial court after an extensive examination of the case and an inquiry into the matter which in our view has made this a fit case for further inquiry.

10. Furthermore, the recovery of a 30-bore pistol from petitioner Faisal-ur-Rehman stands unsupported by any independent corroboration. It is a settled principle, as reiterated in *Muhammad Nasir Butt*,³ that the non-association of private witnesses from the locality to attest to the recovery of a weapon of offense in a public setting casts a serious shadow of doubt on the prosecution's claim, often leading to the judicial disbelief of such recoveries. When viewed alongside the defense's assertion of absolute fabrication, these cumulative gaps decisively shift the case into the category of "further inquiry" as envisioned under Section 497(2) of the Cr.P.C.

11. It is now well settled that in cases of further inquiry, the concession of bail is to be extended as a rule, as held in the landmark case of *Tariq Bashir*.⁴ Underpinning this principle is the constitutional sacredness of human liberty and the golden rule of the *presumption of innocence*, which dictates that an accused is presumed innocent until proven guilty. Where a case presents reasonable grounds for further inquiry into the guilt of an accused, the grant of bail becomes a matter of right rather than grace. The

³ Muhammad Nasir Butt v. The State (2025 SCMR 662)

⁴ Tariq Bashir and another v. The State (PLD 1995 SC 34)

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rationale of setting the law into motion in criminal cases is to ensure that the accused faces trial, and not to mete out advance punishment or let them rot behind bars pre-trial. The state has failed to demonstrate that the petitioners are previous convicts, habitual offenders, or that there is any apprehension of their abscondence or tampering with the prosecution evidence if released.

12. We, therefore, without touching upon the merits of the case, are of the considered view that the petitioners have successfully made out a case for the grant of bail. We, therefore, convert these petitions into appeals and allow the same. The appellants are granted post-arrest bail, subject to their furnishing surety bonds in the sum of Rs. 1,00,000/- (Rupees one hundred thousand) each, with personal bond in the like amount to the satisfaction of the learned Trial Court. The accused, if not required in any other case, may be released forthwith. Needless to state that the observations made above are only tentative in nature and would not influence the trial, which would be made entirely on the basis of facts obtaining in the instant matter independently.

13. These are the reasons for our short order dated 08.06.2026, which is reproduced hereinbelow:

"For the reasons to be recorded later, the petitions are converted into appeals and are allowed. The petitioners are granted post-arrest bail subject to their furnishing surety bonds in the sum of Rs.1,00,000/- each and PR in the like amount each to the satisfaction of the Trial Court. They be set at liberty forthwith if not required in any other case."

Islamabad
8th June, 2026
Arshed/Zainab Qazi, Law Clerk
Not Approved for Reporting